

**MEMORANDUM OF UNDERSTANDING
BETWEEN YUBA COUNTY SHERIFF AND
Public Works**

THIS MEMORANDUM OF UNDERSTANDING “MOU” is hereby made by and between the YUBA COUNTY SHERIFF’S DEPARTMENT (“SHERIFF”) and the YUBA COUNTY PUBLIC WORKS (“PUBLIC WORKS”).

In consideration of the Services to be rendered, the sums to be paid, and each and every covenant and condition contained herein, the parties hereto agree as follows:

RECITALS

WHEREAS, PUBLIC WORKS has a need for security technology to support law enforcement and emergency operations in the Starbend Boat Ramp Area, through coordination with Yuba County Sheriff; and

WHEREAS, SHERIFF has an existing agreement with Flock Group Inc. for the provision of Flock Advanced Operating System “FLOCK” which includes surveillance cameras and software; and

WHEREAS, PUBLIC WORKS has agreed to reimburse the SHERIFF for the one-time implementation cost and two (2) years of subscription costs for one (1) cameras. Cameras are to be placed and fixed to the Starbend Boat Ramp Area as determined by the SHERIFF and agreed upon by PUBLIC WORKS.

NOW THEREFORE, THE PARTIES AGREE AS FOLLOWS:

1. **TERM.** This Agreement shall apply to the period of June 3, 2025 and remain in full force and effect until terminated pursuant to Section 7 of this Agreement or termination of the Flock Group Inc. Agreement between the SHERIFF and Flock Group Inc.
2. **DESIGNATED REPRESENTATIVE.** The Yuba County Sheriff-Coroner located at 720 Yuba St, Marysville, CA 95901, is the representative for the SHERIFF and will administer this MOU. Director of Public Works, Samuel Bunton, located at 915 8th Street, Suite 125, Marysville, CA 95901, is the authorized representative for Yuba County Public Works. Changes in designated representatives shall occur only in advance written notice to the other party.
3. **PURPOSE.** The purpose of this Agreement is to establish the responsibilities and actions required by PUBLIC WORKS and SHERIFF as it relates to SHERIFF providing service and use of an existing contract to PUBLIC WORKS, between SHERIFF and Flock Group Inc.
4. **SCOPE OF SERVICES.** SHERIFF shall enter into an agreement with FLOCK provided herein.

4.1. The SHERIFF shall execute an agreement with FLOCK to provide the following software and services to PUBLIC WORKS:

4.1.1. Installation of One (1) FLOCK Safety Solar Multi-Purpose LPR and Video with LTE Service

4.1.2. Installation of above software.

4.1.3. Annual Support and Updates of the above software.

4.1.4. Repairs and Replacement of above cameras as needed.

4.2. The PUBLIC WORKS shall reimburse the SHERIFF under Section 5 of this agreement.

5. FISCAL PROVISIONS

5.1. PUBLIC WORKS agrees to reimburse the SHERIFF for the payment of PUBLIC WORKS's Solar Multi-purpose LPR and Video Fixed Cameras, Installation, and Annual Support in the First Year in the amount of Five Thousand Five Hundred Forty Six Dollars and no cents (\$5,546.00).

5.2. After the First Year, PUBLIC WORKS agrees to reimburse the SHERIFF annually for the Annual Support in the amount of Four Thousand Seven Hundred Dollars and no cents (\$4,700.00) based on proposal received from FLOCK unless amended in writing thereafter. For subsequent years of the contract, the reimbursement amount to the SHERIFF For subsequent years of the contract, the reimbursement amount to the Sheriff is subject to any actual cost increases associated with PUBLIC WORKS cameras. Billing will be based on documented vendor charges and provided to PUBLIC WORKS with supporting documentation within 30 days of receipt of increase.

5.3. SHERIFF shall notify PUBLIC WORKS regarding any increases during the term as required by Flock Group Inc. PUBLIC WORKS shall pay the additional increase within 60 days of being notified. Both parties agree if the system suffers an outage; neither will be entitled to compensation.

5.4. PUBLIC WORKS shall be responsible for any additional costs associated with the implementation of Solar Multi-purpose LPR and Video Fixed Cameras, including but not limited to hardware, network infrastructure, maintenance, or other related expenses necessary for successful deployment and operation. Additional costs associated with the implementation shall be discussed with PUBLIC WORKS, and agreed upon, prior to authorization of work.

5.5. SHERIFF will direct bill PUBLIC WORKS for reimbursement through preparation and submission of a journal that includes charges and appropriate backup documentation annually.

6. GENERAL PROVISIONS

6.1. **AGREEMENTS.** This MOU constitutes the entire Agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements and understandings of the parties with respect to the subject matter of this MOU.

6.2. MODIFICATION. No modification or waiver of any provision of this MOU or its attachments shall be effective unless such waiver or modification shall be in writing, signed by all parties, and then shall be effective only for the period and on the condition, and for the specific instance for which given.

6.3. ENTIRE AGREEMENT. This MOU represents the entire understanding of the parties as to those matters contained herein. No prior oral or written understanding shall be of any force or effect with respect to those matters covered hereunder. This MOU may only be modified by a written amendment duly executed by the parties.

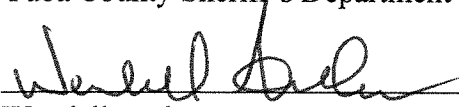
- 7. TERMINATION.** This MOU may be terminated by any party, with or without cause as follows: by mutual consent of the parties; or by either party upon no less than thirty (30) days prior written notice to the other party.
- 8. NOTICES.** All notices and demands of any kind which either party may require or desire to serve on the other in connection with this MOU must be served in writing either by personal service or by registered or certified mail, return receipt requested, and shall be deposited in the United States Mail, with postage thereon fully prepaid, and addressed to the party so to be served and addressed as follows.

SHERIFF: County of Yuba
Attn: Sheriff
720 Yuba Street
Marysville, CA 95901

With a copy to: County Counsel
County of Yuba
915 8th Street, Suite 111
Marysville, CA 95901

PUBLIC WORKS: Yuba County Public Works
Attn: Director of Public Works
915 8th Street, Suite 125
Marysville, CA 95901

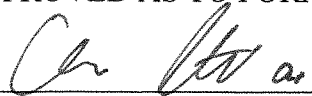
IN WITNESS WHEREOF, the parties hereto have executed this Memorandum of Understanding on June 17, 2025:

“SHERIFF”
Yuba County Sheriff’s Department

Wendell Anderson,
Sheriff

“PUBLIC WORKS”
Yuba County Public Works

Samuel Bunton,
Director of Public Works

APPROVED AS TO FORM:


Janet E. Bender,
County Counsel and PUBLIC WORKS General Counsel